

26CHCP00278 26CHCP00278

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 26CHCP00278 Hearing Date: August 10, 2026 Dept: F47

Dept. F47

Date: 8/10/26

Case #26CHCP00278

EX PARTE

APPLICATION

FOR ORDER TO

PERMIT INSPECTION UNDER

CIVIL CODE

2929.5(d)

Ex Parte Application filed on 7/29/26.

MOVING PARTY: Petitioner First-Citizens Bank & Trust

Company

RESPONDING PARTY: Respondents 9142 Independence LLC;

Ararat Group USA, Inc. and Vardan Vahanyan

RELIEF REQUESTED: An order pursuant to Civil Code

2929.5(a) and (d) permitting the inspection of real property located at 9142

Independence Avenue in Chatsworth, California based on Petitioner's pending

nonjudicial foreclosure sale and the necessity to complete a Phase I

environmental assessment to determine "the existence of a past or present

release or threatened release of any hazardous substance into, onto, beneath, or from the real property.”

RULING: The ex parte application is denied.

On 7/24/26, Petitioner First-Citizens Bank & Trust Company (Petitioner) filed the underlying Petition for Order to Permit Inspection Under Civil Code 2929.5(d) against Respondents 9142 Independence LLC (Independence LLC); Ararat Group USA, Inc. (Ararat) and Vardan Vahanyan (Vahanyan) in order to conduct an inspection before the nonjudicial sale of the property located 9142 Independence Avenue in Chatsworth, California (the Property). Petitioner contends that despite attempts, it has been unable to access the Property to conduct the necessary inspection.

Civil Code 2929.5 provides, in relevant part:

(a) A secured lender may enter and inspect the real property security for the purpose of determining the existence, location, nature, and magnitude of any past or present release or threatened release of any hazardous substance into, onto, beneath, or from the real property security on either of the following:

. .
.

(2) After the commencement of nonjudicial or judicial foreclosure proceedings against the real property security.

(b) The secured lender shall not abuse the right of entry and inspection or use it to harass the borrower or tenant of the property. Except in case of an emergency, when the borrower or tenant of the property has abandoned the premises, or if it is impracticable to do so, the secured lender shall give the borrower or tenant of the property reasonable notice of the secured lender's intent to enter, and enter only during the borrower's or tenant's normal business hours. Twenty-four hours' notice shall be presumed to be reasonable notice in the absence of evidence to the contrary.

(c) The secured lender shall reimburse the borrower for the cost of repair of any physical injury to the real property security caused by the entry and inspection.

(d) If a secured lender is refused the right of entry and inspection by the borrower or tenant of the property, or is otherwise unable to enter and inspect the property without a breach of the peace, the secured lender may, upon petition, obtain an order from a court of competent jurisdiction to exercise the secured lender's rights under subdivision (a), and that action shall not constitute an action within the meaning of subdivision (a) of Section 726 of the Code of Civil Procedure.

Independence LLC is alleged to be the owner the real property located at 9142 Independence Avenue in Chatsworth, California with its principal place of business in Chatsworth, California. (Petition ¶2). Ararat is alleged to be a guarantor with its principal place of business in Chatsworth, California. (Id. ¶3). Vahanyan is also alleged to be a guarantor who resides in Sherman Oaks, California. (Id. ¶4).

On 7/29/26, Petitioner filed the instant ex parte application seeking an order pursuant to Civil Code 2929.5(a) and (d) permitting the inspection of real property located at 9142 Independence Avenue in Chatsworth, California based on Petitioner's pending nonjudicial foreclosure sale and the necessity to complete a Phase I environmental assessment to determine "the existence of a past or present release or threatened release of any hazardous substance into, onto, beneath, or from the real property."

The Court finds that Petitioner has failed to establish that proper ex parte notice has been provided and/or that ex parte relief is warranted in this case. The declaration regarding notice indicates that on 7/28/26 a telephone call was made to Ararat at its last known telephone number; however, the number appeared to be disconnected. (Simon Decl. ¶4). Additionally, an email was sent to the Borrower's member, Ararat's President and Secretary and Guarantor Vahanyan and no response was received. Id. There is no indication that any effort was made to notify Independence LLC of the ex parte hearing.

Even if proper ex parte notice had been provided, there is no evidence before the Court that the underlying petition has been served on

any of the Respondents. Granting of this ex parte application would render the underlying petition moot as they seek the same relief.

The Court finds that due process requires that Respondents be properly served with the underlying Petition and have the opportunity to respond before the Court can grant the relief requested in the Petition and in this ex parte application.